

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

LISA LEE,

Petitioner

VS.

JOSEPH LEE,

Respondent

) Case Number: FMS-20-387324

) Hearing Date: August 27, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER OF TEMPORARY EMERGENCY ORDER, CHILD CUSTODY,
VISITATION (PARENTING TIME), TIER 2 MEDIATION

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner, Lisa Lee (Mother) and Respondent, Joseph Lee (Father). They share one minor child: Noah N. Lee (DOB: 06/28/12).
- 2) On May 14, 2026, Mother filed an Ex Parte application seeking emergency orders for child custody, visitation, and a Tier II mediation. The Court DENIED emergency relief and set the matter for regular hearing on June 29, 2026.
- 3) On May 14, 2026, Father filed a Responsive Declaration to Mother's emergency request in which he asks the Court to deny Mother's request and continue with the joint legal/joint physical custody orders. In addition, he believes a week on/week off schedule would be in the minor child's best interest.
- 4) On June 22, 2026, Mother filed a supplemental declaration.
- 5) On June 29, 2026, Father filed an update declaration.

6) On June 29, 2026, the parties appeared at Readiness hearing and the Court referred the matter to FCS Mediation to occur on August 3, 2026 and set a return hearing on August 27, 2026.

7) The parties did not reach an agreement at mediation.

B. Findings and Order

1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in violation to civil or criminal penalties, or both. The country of habitual residence of the minor child(ren) is the United States.

2) Both parents shall share joint legal and joint physical custody of the minor child.

3) The parenting schedule shall be on a two week on/two week off schedule with exchanges to occur on Sundays at 6:00 p.m. Father shall commence the two-week cycle on Sunday, August 30, 2026 at 6:00 p.m. Mother shall commence the two-week cycle on Sunday, September 6, 2026. The parties shall rotate every two weeks thereafter.

4) The parties may modify the parenting schedule by mutual written agreement.

5) The Court will prepare the Findings and Order After Hearing.